

OFFICE OF THE SECRETARY

PO Box 942883
Sacramento, CA 94283-0001



January 21, 2020

The Honorable Richard E. Arnason
Judge of the Superior Court
County of Contra Costa
725 Court Street
Martinez, CA 94553

Re: Gary Lee Roberson, Jr.
CDCR No: T06032
Case No: 991073-8
Date of Sentence: January 12, 2001

Dear Honorable Richard E. Arnason:

The purpose of this letter is to provide the court with the authority to resentence inmate Gary Roberson, T06032, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

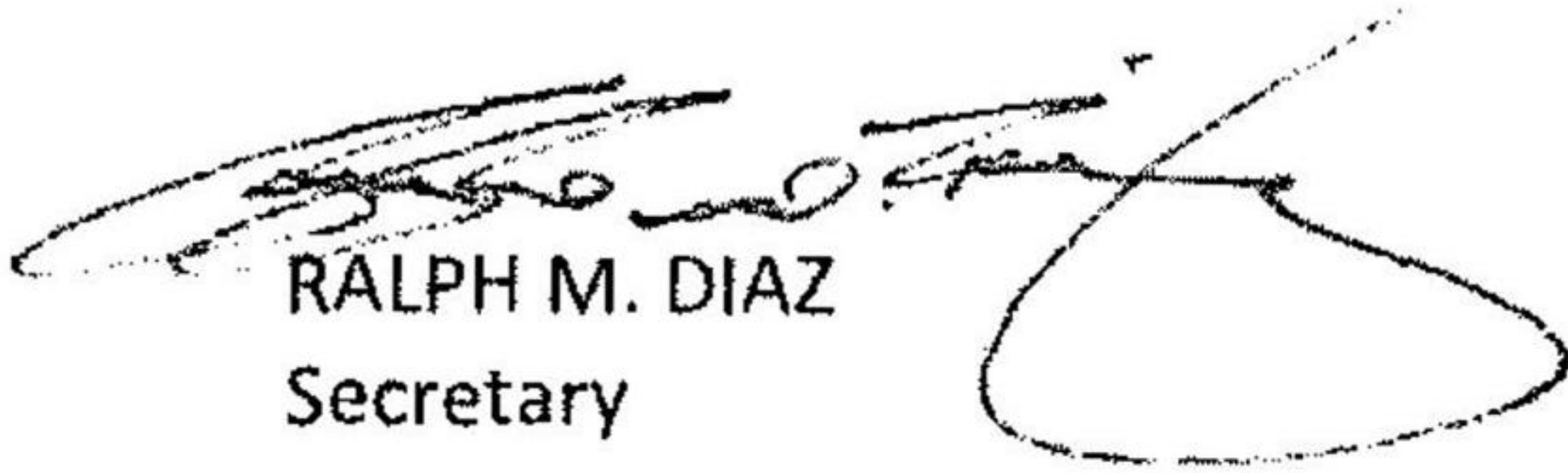
Roberson is commended for only receiving two Rules Violation Reports since being recieved to CDCR on January 26, 2001 and has remained disciplinary free since April 23, 2002. Roberson is currently assigned to Vocational Computer Literacy and has been commended by staff for his positive attitude and work performance. Inmate Roberson has also participated in Self-Help Classes such as; Alcoholic Anonymous, Narcotic Anonymous, College Courses, Addiction Recovery Counseling, Guiding Rage Into Power Program, San Quentin's Utilization of Inmate Resources Experiences and Studies, KAIROS, Criminal and Gang Members Anonymous, Alternative to Violence, Parenting 101 Classes, Non-Violent Communication Anger

The Honorable Richard E. Arnason
Page 2

Management, Long Term Commitment Group, Surviving Recovery, Anger Transformation, The Beat Within Mentorship, Father Focus Education, Center Force, and Prison Letters 4 Our Struggling Youth Program. Roberson also received his Certificate of High School Equivalency while incarcerated on August 24, 2009.

Having reviewed the enclosed documentation it appears that Roberson's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Honorable Jill C. Fannin, Presiding Judge
Contra Costa County District Attorney's Office
Contra Costa County Public Defender's Office